

PRIVACY POLICY

Aisling Fegan, HCPC registered art psychotherapist
communityarttherapist.com

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As a private practitioner, I am registered with the Information Commissioner's Office and I abide by the General Data Protection Regulation (GDPR). This means that I need to tell you what personal data I am collecting from you and how I process it. Please see the details outlined below.

I record as little personal information about you as possible. Your personal data collected includes:

- Name, date of birth, address, phone number, email address.
- Dates of contacts, appointments and attendances.
- A record of the information provided, including; life events, family and medical history, etc.
- Brief session summary.
- Contact details of your next of kin and professionals responsible for your welfare (GP, Social Worker, etc.).

Why your personal data is collected and processed:

- To establish clear understanding of your life circumstances, views, interests and needs.
- To provide you with the as effective service possible.
- To protect you from any harm.
- To meet the legal obligations.

How your data is collected:

- From the referral: by telephone, email, letter, etc.
- From the initial consultation
- From each therapy session
- Artwork created in the sessions
- Correspondence between the sessions, through telephone and emails.

How your data is stored:

Any written data and digital images of therapy artwork is stored securely in an encrypted electronic format in a password protected system. The data will be retained in a separate encrypted password protected system for 7 years after the completion of the therapy. Between therapy sessions, my preference is for communication via email. I do not store telephone numbers on my phone.

Artwork:

Artwork created in in-person therapy is stored safely in the art therapy studio. At the end of your course of art therapy, you will decide what to do with your artwork. If disposal is your choice, I will follow your instruction to dispose it confidentially. Any digital images will be deleted from the system.

Online Appointments:

If we see each other online, I use Zoom as a secure platform for videocalls. You can read [Zoom's GDPR policy here](#). Our meeting link will not contain any identifiable information. You do not need to have an account to join the zoom meeting.

Data sharing:

Art therapy sessions are confidential. The only place I might talk about your sessions is within my own confidential, clinical supervision. I will not reveal your full name or any other details that may identify you.

I have appointed HCPC registered art psychotherapist, Bisha Mistry as my Clinical Executor, in the case of my incapacity or death. As a trusted colleague, Bisha will have access to your first name and contact details to inform you if I am unable to work. She will not have access to any other information related to your therapy.

In exceptional circumstances, where there are serious acts of harm to self and others, in criminal cases or if I am summoned to appear before a Court of Law, it may not be possible to maintain confidentiality. It should be stressed, however, that this is unusual and in all cases you will be consulted and kept informed.

Financial data:

I keep financial information including bank statements for 7 years as advised by HMRC. Please be aware, as a self-employed art therapist, invoices are evidence of my income and these must be declared to HMRC annually. If you pay me via BACS, please be aware that your account name and reference may be viewed by employees of the bank.

Your rights:

Please note that you have the rights:

- To have data about you deleted.
- To have inaccurate personal data corrected.
- To object or restrict the data being processed by legitimate interest.
- To object to decisions being taken by automated means.
- To request the data to be transferred to another organisation by legitimate interest.
- To request to access your personal data and information about processing of it.

Complaints:

In the event you are unhappy with the way I use your data you can make a complaint to the Information Commissioner's Office at www.ico.org.uk or tel.: 03031231113.

If you have any questions, please do not hesitate to contact me on communityarttherapist@gmail.com

Sincerely,
Aisling Fegan.